The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989

No. 33 OF 1989

[11th September, 1989.]

An Act to prevent the commission of offences of atrocities against the members of the Scheduled Castes and the Scheduled Tribes, to provide for Special Courts for the trial of such offences and for the relief and rehabilitation of the victims of such offences and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Fortieth Year of the Republic of India as Follows:

Chapter I: PRELIMINARY

1. Short title, extent and commencement

1. This Act may be called the Scheduled Castes and the Scheduled extent and Tribes (Prevention of Atrocities) Act, 1989.
2. It extends to the whole of India except the State of Jammu & Kashmir.
3. It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions

1. In this Act unless the context otherwise requires -
    a. "atrocity" means an offence punishable under section 3
    b. "Code" means the Code of Criminal Procedure, 1973 (2 of 1974)
    c. "Scheduled Castes and Scheduled Tribes" shall have the mean-ings assigned to them respectively under clause (24) and clause (25) of article 366 of the Constitution
    d. "Special Court" means a Court of Session specified as a Special Court in section 14
    e. "Special Public Prosecutor" means a Public Prosecutor specified as a Special Public Prosecutor or an advocate referred to in section 15
    f. words and expressions unsed but not defined in this Act and de-fined in the Code or the Indian Penal Code (45 of 1860) shall have the meanings assigned to them respectively in the Code, or as the case may be, in the Indian Penal Code.
2. Any reference in this Act to any enactment or any provision thereof shall in relation to an area in which such enactment or such provision is not in force, be construed as a reference to the corresponding law, if any, in force in that area.

CHAPTER II: OFFENCES OF ATROCITIES

3. Punishment for offences of atrocities

1. Whoever, not being a member of a Scheduled Caste or a Scheduled Tribe -
    i. forces a member of a Scheduled Caste or a Scheduled Tribe to drink or eat any inedible or obnoxious substance
    ii. acts with intent to cause injury, insult or annoyance to any member of a Scheduled Caste, or a Scheduled Tribe by dumping excreta, waste matter, carcasses or any other obnoxious substance in his premises or neighbourhood;

iii. forcibly removes clothes from the person of a member of a Schedul-ed Caste or a Scheduled Tribe or parades him naked or with painted face or body or commits any similar act which is derogatory to human dignity

iv. wrongfully occupies or cultivates any land owned by, or allotted to, or notified by any competent authority to be allotted to, a member of a Scheduled Caste or a Scheduled Tribe or gets the land allotted to him transferred;

v. wrongfully dispossesses a member of a Scheduled Caste or a Scheduled Tribe from his land or premises or interferes with the enjoyment of his rights over any land, premises or water

vi. compels or entices a member of a Scheduled Caste or a Scheduled Tribe to do 'begar' or other similar forms of forced or bonded labour other than any compulsory service for public purposes imposed by Government

vii. forces or intimidates a member of a Scheduled Caste or a Scheduled Tribe not to vote or to vote to a particular candidate or to vote in a manner other than that provided by law

viii. institutes false, malicious or vexatious suit or criminal or other legal proceedings against a member of a Scheduled Caste or a Scheduled Tribe

ix. gives any false or frivolous information to any public servant and thereby causes such public servant to use his lawful power to the injury or annoyance of a member of a Scheduled Caste or a Scheduled Tribe

x. intentionally insults or intimidates with intent to humiliate a member of a Scheduled Caste or a Scheduled Tribe in any place within public view

xi. assaults or uses force to any woman belonging to a Scheduled Caste or a Scheduled Tribe with intent to dishonour or outrage her modesty

xii. being in a position to dominate the will of a woman belonging to a Scheduled Caste or a Scheduled Tribe and uses that position to exploit her sexually to which she would not have otherwise agreed

xiii. corrupts or fouls the water of any spring, reservoir or any other source ordinarily used by members of the Scheduled Castes or a Scheduled Tribes so as to render it less fit for the purpose for which it is ordinarily used

xiv. • denies a member of a Scheduled Caste or a Scheduled Tribe any customary right of passage to a place of public resort or obstructs such member so as to prevent him from using or having access to a place of public resort to which other members of public or any section thereof have a right to use or access to

xv. forces or causes a member of a Scheduled Caste or a Scheduled Tribe to leave his house, village or other place of residence

shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to five years and with fine.

- Whoever, not being a member of a Scheduled Caste or a Scheduled Tribe -

i. gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any member of a Scheduled Caste or a Scheduled Tribe to be convicted of an offence which is capital by the law for the time being in force shall be punished with imprisonment for life and with fine; and if an innocent member of a Scheduled Caste or a Scheduled Tribe be convicted and executed in consequence of such false or fabricated evidence, the person who gives or fabricates such false evidence, shall be punished with death

ii. gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any member of a Scheduled Caste or a Scheduled

Tribe to be convicted of an offence which is not capital but punishable with imprisonment for a term of seven years or upwards, shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to seven years or upwards and with fine

iii. commits mischief by fire or any explosive substance intending to cause or knowing it to be likely that he will thereby cause damage to any property belonging to a member of a Scheduled Caste or a Scheduled Tribe, shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to seven years and with fine

iv. commits mischief by fire or any explosive substance intending to cause or knowing it to be likely that he will thereby cause destruction of any building which is ordinarily used as a place of worship or as a place for human dwelling or as a place for custody of the property by a member of a Scheduled Caste or a Scheduled Tribe, shall be punishable with imprisonment for life and with fine

v. commits any offence under the Indian Penal Code (45 of 1860) punishable with imprisonment for a term of ten years or more against a person or property on the ground that such person is a member of a Scheduled Caste or a Scheduled Tribe or such property belongs to such member, shall be punishable with imprisonment for life and with fine

vi. knowingly or having reason to believe that an offence has been committed under this Chapter, causes any evidence of the commission of that offence to disappear with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false, shall be punishable with the punishment provided for that offence; or

vii. being a public servant, commits any offence under this section, shall be punishable with imprisonment for a term which shall not be less than one year but which may extend to the punishment provided for that offence

4. Punishment for neglect of duties

Whoever, being a public servant but not being a member of a Scheduled Caste or a Scheduled Tribe, wilfully neglects his duties required to be performed by him under this Act, shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to one year.

5. Enhanced punishment for subsequent conviction

Whoever, having already been convicted of an offence under this Chapter is convicted for the second offence or any offence subsequent to the second offence, shall be punishable with imprisonment for a term which shall not be less than one year but which may extend to the punishment provided for that offence.

6. Application of certain provisions of the Indian Penal Code

Subject to the other provisions of this Act, the provisions of section 34, Chapter III, Chapter IV, Chapter V, Chapter VA, Section 149 and Chapter XXIII of the Indian Penal Code (45 of 1860), shall, so far as may be, apply for the purposes of this Act as they apply for the purposes of the Indian Penal Code.

7. Forfeiture of property of certain persons

1. Where a person has been convicted of any offence punishable under this Chapter, the Special Court may, in addition to awarding any punishment, by order in writing, declare that any

property, movable or immovable or both, belonging to the person, which has been used for the commission of that offence, shall stand forfeited to Government.

2. Where any person is accused of any offence under this Chapter, it shall be open to the Special Court trying him to pass an order that all or any of the properties, movable or immovable or both, belonging to him, shall, during the period of such trial, be attached, and where such trial ends in conviction, the property so attached shall be liable to forfeiture to the extent it is required for the purpose of realisation of any fine imposed under this Chapter.

8. Presumption as to offences

In a prosecution for an offence under this Chapter, if it is proved that -

a. the accused rendered any financial assistance to a person accused of, or reasonably suspected of committing, an offence under this Chapter, the Special Court shall presume, unless the contrary is proved, that such person had abetted the offence

b. a group of persons committed an offence under this Chapter and if it is proved that the offence committed was a sequel to any existing dispute regard-ing land or any other matter, it shall be presumed that the offence was committed in furtherance of the common intention or in prosecution of the common object.

9. Conferment Powers

1. Notwithstanding anything contained in the Code or in any other provision of this Act, the State Government may, if it consider it necessary or expedient so to do -
   a. for the prevention of and for coping with any offence under this Act, or
   b. for any case or class or group of cases under this Act,

   in any district or part thereof, confer, by notification in the Official Gazette, on any officer of the State Government, the powers exercisable by a police officer under the Code in such district or part thereof or, as the case may be, for such case or class or group of cases, and in particular, the powers of arrest, investigation and prosecution of persons before any Special Court.

2. All officer of police and all other officers of Government shall assist the officer referred to in sub-section (1) in the execution of the provisions of this Act or any rule, scheme or order made thereunder.
3. The provisions of the Code shall, so far as may be, apply to the exercise of the powers by an officer under sub-section (1).

CHAPTER III: EXTERNMENT

10. Removal of person likely to commit offence

a. Where the Special Court is satisfied, upon a complaint, or a police report that a person is likely to commit an offence under Chapter II of this Act in any area included in 'Scheduled Areas' or 'tribal areas', as referred to in article 244 of the Constitution, it may, by order in writing, direct such person to remove himself beyond the limits of such area, by such route and within such time as may be specified in the order, and not to return to that area from which he was directed to remove himself for such period, not exceeding two years, as may be specified in the order.

b. The Special Court shall, along with the order under sub-section (1) communicate to the person directed under that sub-section the grounds on which such order has been made.

c. The Special Court may revoke or modify the order made under sub- section (1), for the reasons to be recorded in writing, on the representation made by the person against whom such order

has been made or by any other person on his behalf within thirty days from the date of the order.

11. Procedure on failure of person to remove himself from area and enter thereon after removal

1. If a person to whom a direction has been issued under section 10 to remove himself from any area -
    a. fails to remove himself as directed; or
    b. having so removed himself enters such area within the period specified in the order,

    otherwise than with the permission in writing of the Special Court under sub-section (2), the Special Court may cause him to be arrested and removed in police custody to such place outside such area as the Special Court may specify.

2. The Special Court may, by order in writing, permit any person in respect of whom an order under section 10 has been made, to return to the area from which he was directed to remove himself for such temporary period and subject to such conditions as may be specified in such order and may require him to execute a bond with or without surety for the due observation of the conditions imposed.
3. The Special Court may at any time revoke any such permission.
4. Any person who, with such permission, returns to the area from which he was directed to remove himself shall observe the conditions imposed, and at the expiry of the temporary period for which he was permitted to return, or on the revocation of such permission before the expiry of such temporary period, shall remove himself outside such area and shall not return thereto within the unexpired portion specified under section 10 without a fresh permission.
5. If a person fails to observe any of the conditions imposed or to remove himself accordingly or having so removed himself enters or returns to such area without fresh permission the Special Court may cause him to be arrested and removed in police custody to such place outside such area as the Special Court may specify.

12. Taking measurements and photographs, etc. of persons against whom order under section 10 is made

1. Every person against whom an order has been made under section 10 shall, if so required by the Special Court, allow his measurements and photographs to be taken by a police officer.
2. If any person referred to in sub-section (1), when required to allow his measurements or photographs to be taken resists or refuses to allow his taking of such measurements or photographs, it shall be lawful to use all necessary means to secure the taking thereof.
3. Resistance to or refusal to allow the taking of measurements or photographs under sub-section (2) shall be deemed to be an offence under section 186 of the Indian Penal Code (45 of 1860).
4. Where an order under section 10 is revoked, all measurements and photographs (including negatives) taken under sub-section (2) shall be destroyed or made over to the person against whom such order is made.

13. Penalty for non compliance of order under section 10

Any person contravening an order of the Special Court made under section 10 shall be punishable with imprisonment for a term which may extend to one year and with fine.

CHAPTER IV: SPECIAL COURTS

For the purpose of providing for speedy trial, the State Government shall, with the concurrence of the Chief Justice of the High Court, by notification in the Official Gazette, specify for each district a Court of Session to be a Special Court to try the offences under this Act.

15. Special Public Prosecutor

For every Special Court, the State Government shall, by notification in the Official Gazette, specify a Public Prosecutor or appoint an advocate who has been in practice as an advocate for not less than seven years, as a Special Public Prosecutor for the purpose of conducting cases in that Court.

CHAPTER V: MISCELLANEOUS

16. Power of State Government to impose collective fine

The provisions of section 10A of the Protection of Civil Rights Act, 1955 (22 of 1955) shall, so far as may be, apply for the purposes of imposition and realisation of collective fine and for all other matters connected therewith under this Act.

17. Preventive action to be taken by the law and order machinery

1. A District Magistrate or a Sub-divisional Magistrate or any other Executive Magistrate or any police officer not below the rank of a Deputy Superintendent of Police may, on receiving information and after such inquiry as he may think necessary, has reason to believe that a person or a group of persons not belonging to the Scheduled Castes or the Scheduled Tribes, residing in or frequenting any place within the local limits of his jurisdiction is likely to commit an an offence or has threatened to commit any offence under this Act and is of the opinion that there is sufficient ground for proceeding, declare such an area to be an area prone to atrocities and take necessary action for keeping the peace and good behaviour and maintenance of public order and tranquility and may take preventive action.
2. The provisions of Chapters VIII, X and XI of the Code shall, so far as may be, apply for the purposes of sub-section (1).
3. The State Government may, by notification in the Official Gazette, make one or more schemes specifying the manner in which the officers referred to in sub-section (1) shall take appropriate action specified in such scheme or schemes to prevent atrocities and to restore the feeling of security amongst the members of the Scheduled Castes and the Scheduled Tribes.

18. Section 438 of the code not to apply to persons committing an offence under the Act

Nothing in section 438 of the Code shall apply in relation to any case involving the arrest of any person on an accusation of having committed an offence under this Act

19. Section 360 of the Code or the Provisions of the Probation of Offenders Act not to apply to persons guilty of an offence under the Act

The provisions of section 360 of the Code and the provisions of the Probation of Offenders Act, 1958 (20 of 1958) shall not apply to any person above the age of eighteen years who is found guilty of having committed an offence under this act.

20. Act to override other laws

Save as otherwise provided in this Act, the provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any custom or usage or any instrument having effect by virtue of any such law.

21. Duty of Government to ensure effective implementation of the Act

1. Subject to such rules as the Central Government may make in this behalf, the State Government shall take such measures as may be necessary for the effective implementation of this Act.
2. In particular, and without prejudice to the generality of the foregoing provisions, such measures may include -
   i. the provision for adequate facilities, including legal aid to the persons subjected to atrocities to enable them to avail themselves of justice
   ii. the provision for travelling and maintenance expenses to witness-es, including the victims of atrocities, during investigation and trial of offences under this Act
   iii. the provision for the economic and social rehabilitation of the victims of the atrocities
   iv. the appointment of officers for initiating or exercising supervision over prosecutions for the contravention of the provisions of this Act
   v. the setting up of committees at such appropriate levels as the State Government may think fit to assist that Government in formulation or implementation of such measures
   vi. provision for a periodic survey of the working of the provisions of this Act with a view to suggesting measures for the better implementation of the provision of this Act
   vii. the identification of the areas where the members of the Schedul-ed Castes and the Scheduled Tribes are likely to be subjected to atro-cities and adoption of such measures so as to ensure safety for such members
3. The Central Government shall take such steps as may be necessary to co-ordinate the measures taken by the State Governments under sub-section (1)
4. The Central Government shall, every year, place on the table of each House of Parliament a report on the measures taken by itself and by the State Governments in pursuance of the provisions of this section.

22. Protection of action taken in good faith

No suit, prosecution or other legal proceedings shall lie against the Central Government or against the State Government or any officer or authority of Government or any other person for anything which is in good faith done or intended to be done under this Act.

23. Power to make rules

1. The Central government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.
2. Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be make, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

V. S. RAMA DEVI,
Secy. to the Govt. of India.

National Commission for Scheduled Castes

The National Commission for Scheduled Castes (NCSC) is a constitutional body that works to safeguard the interests of the scheduled castes in India. It seeks to offer the SC community protection from discrimination and exploitation, as well as providing facilities to uplift the SC community. Article 338 of the constitution of India deals with this commission.

Important constitutional bodies are significant segments of the UPSC syllabus. The NCSC is a very important body in India as it deals with the scheduled castes and their development.

National Commission for Scheduled Castes Functions

1. Monitoring and investigating all issues concerning the safeguards provided for the SCs under the constitution.
2. Enquiring into complaints relating to the deprivation of the rights and safeguards of the SCs.
3. Taking part in and advising the central or state governments with respect to the planning of socio-economic development of the SCs.
4. Regular reporting to the President of the country on the implementation of these safeguards.
5. Recommending steps to be taken to further the socio-economic development and other welfare activities of the SCs.
6. Any other function with respect to the welfare, protection, development and advancement of the SC community.

National Commission for Scheduled Castes Composition

- Currently, the fifth NCSC is in progression.
- **National SC Commission Chairman: Dr Ram Shankar Katheria**
- Apart from the Chairman, there is a Vice-chairman and three other members.

NCSC History

- Initially, the constitution provided for the appointment of a **Special Officer** under Article 338.
- This special officer was designated as the Commissioner for Scheduled Castes and Scheduled Tribes.
- In 1987, the government, upon pressure from various Members of Parliament, decided to form a multi-member commission for the welfare of the SCs and STs instead of a one-member commission.
- The **65th Amendment** to the constitution replaced the one-member system with a multi-member **National Commission for Scheduled Castes and Scheduled Tribes**. The Constitution (65th Amendment) Act 1990, amended Article 338 of the Constitution. The newly

formed National Commission for Scheduled Castes and Scheduled Tribes consisted of 5 members apart from the Chairman and Vice-Chairman of the Commission.

- The 89th Amendment in 2003 replaced this Commission with the following with effect from 2004:
    - National Commission for Scheduled Castes
    - National Commission for Scheduled Tribes
- The first National Commission for Scheduled Castes was formed in 2004 under the chairmanship of Suraj Bhan.

trial plan

STC Monitoring

About STC Monitoring

Tribal Sub-Plan came into existence in 1974-75 as a strategy for the development of areas having tribal concentration. After merger of Plan and Non-Plan, the TSP was renamed as Scheduled Tribe Component (STC) by Ministry of Finance. 41 Central Ministries / Departments have been identified for earmarking of STC. Besides, State Governments are supposed to earmark TSP funds in proportion to ST population (Census 2011) in the State with respect to total State Plan. The monitoring of TSP plan was being done by erstwhile Planning Commission till 2017-18, it was only in FY 2018-19, the monitoring of STC plan was given to Ministry of Tribal Affairs.

The Government allocates funds for different schemes/programmes across Ministries/ Departments for targeted financial and physical benefits to the Scheduled Tribes. Ministry of Tribal Affairs launched an online portal - Scheduled Tribe Component Management Information System (STCMIS) in 2018. The portal monitors the funds allocated/released for welfare of Scheduled Tribes in Union Budget.

Objective:

The basic objective of Schedule Tribe Component is to channelize/monitor the flow of outlays and benefits from the general sectors in the Central Ministries/Departments for the development of Schedules Tribes at least in proportion to their population.

Commissions to adequately equip them to compete for appointment to Civil Services in the Union and the State Governments and to increase the representation of the minorities in the Civil Services.

Status of Conditions of Minorities

Six religious communities viz Muslims, Christians, Buddhists, Sikhs, Zoroastrians (Parsis) and Jains have been notified as minority communities under Section 2(c) of the National Commission for Minorities Act, 1992.

The National Commission for Religious and Linguistic Minorities (NCRLM) constituted under the Chairmanship of Justice Ranganath Misra to recommend measures for the welfare of socially

and economically backward sections among religious and linguistic minorities submitted its report in 2007 and the same was laid on the Table of both the Houses of Parliament on 18.12.2009. The findings of the NCRLM on the conditions of minorities are available in the report.

A High Level Committee, constituted under the Chairmanship of Justice (Retired) Rajinder Sachar to gather data/information for preparation of a comprehensive report on the social, economic and educational status of the Muslim community of India, in its report in 2006 had indicated that the Muslim community lags behind the mainstream in social, economic and educational sectors. The report had been laid on the Table of both the Houses of Parliament on 30.11.2006.

To improve the socio-economic and educational status of Minorities, following schemes are being implemented by this Ministry:

(i) Multi-sectoral Development Programme: The Multi-sectoral Development Programme (MsDP) is an area development initiative to address the development deficits by creating socio-economic infrastructure and providing basic amenities. The Programme was implemented in 90 Minority Concentration Districts (MCDs) of the country during the 11th Five Year Plan and 2012-13. The Programme has been restructured in 2013-14 to make it more effective and more focused on the targeted minorities for its implementation during the 12th Five Year Plan period. In the restructured MsDP, the unit area of planning has been changed to blocks/towns/clusters of villages instead of district for sharper focus on the minority concentration areas.

(ii) Pre-Matric Scholarship Scheme: Under this Scheme, scholarships are awarded to minority students up to class X, who have secured not less than 50% marks in the previous final examination and the annual income of their parents / guardian from all sources does not exceed Rs. 1.00 Lakh. 30% of the scholarships are earmarked for girl students. This is a Central Sector Scheme with 100% central assistance.

(iii) Post-Matric Scholarship Scheme:- Under this Scheme, scholarships are awarded to minority students from class XI onwards who have secured not less than 50% marks or equivalent grade in the previous final examination and the annual income of whose parents/guardian from all sources does not exceed Rs. 2.00 lakh. 30% of the scholarships are earmarked for girl students. This is a Central Sector Scheme with 100% central assistance.

(iv) Merit-cum-Means Based Scholarship Scheme: The Merit-cum-Means Based Scholarship Scheme provides financial assistance to the poor and meritorious minority students pursuing professional studies at graduate and post-graduate levels. 30% of the scholarships are earmarked for girl students. This is a Central Sector Scheme with 100% central assistance.

(v) Maulana Azad National Fellowship - The Fellowship is provided to students from minority communities, as notified by the Central Government to pursue higher studies such as M.Phil and Ph.D. The Fellowship covers all Universities/Institutions recognized by the University Grants Commission (UGC).The Fellowship is on the pattern of UGC Fellowships awarded to research students pursuing regular and full time M.Phil and Ph.D. courses. 30% of the scholarships are earmarked for eligible girl students.

(vi) Free Coaching & Allied Scheme – This scheme is to assist students belonging to the minority communities by way of special coaching for qualifying examinations for admission in technical/ professional courses such as engineering, medical and Competitive examinations for recruitment to Group 'A' , 'B' and 'C' services and other equivalent posts under the Central and State governments including public sector undertakings.

(vii) Padho Pardesh- Interest Subsidy on Educational Loans – This scheme is to award interest subsidy to meritorious students belonging to economically weaker sections of notified minority communities so as to provide them better opportunities for higher education abroad at Masters and Ph.D levels and enhance their employability.

(viii) Support to minority candidates clearing Prelims conducted by UPSC/SSC, State Public Service Commission (PSC) etc. – This Scheme is to provide financial support to the minority candidates clearing prelims conducted by Union Public Service Commission, Staff Selection Commission and State Public Service Commissions to adequately equip them to compete for appointment to Civil Services in the Union and the State Governments and to increase the representation of the minorities in the Civil Services.

(ix) Seekho aur Kamao (Learn & Earn): It is a placement linked skill development programme for minority youths, being implemented since the year 2013-14. This scheme aims at upgrading the skills of minority youths in various modern as well as traditional skills which can earn them suitable employment or make them suitably skilled to go for self-employment. The scheme ensures placements of minimum 75% trained youths, out of which at least 50% placement is in organized sector.

(x) Nai Roshni (Leadership Development of Minority Women): This is a scheme for women empowerment through sensitization and leadership Development of Minority Women being implemented all over the country by this Ministry since 2012-13. The objective of the scheme is to empower and instill confidence in women, by providing knowledge, tools and techniques for interacting with Government systems, banks, and intermediaries at all levels.

(xi) "USTTAD (Upgrading the Skills and Training in Traditional Arts/Crafts for Development)": The scheme was launched on 14.5.2015 to preserve rich heritage of traditional arts/crafts of minorities, set standards of crafts practiced by minorities, build capacity of poor traditional artisans/craftsmen and link them with market.

(xii) National Minorities Development and Finance Corporation (NMDFC): NMDFC is a Central Public Sector Enterprise (CPSE) under administrative control of this Ministry, provides concessional loans for self-employment and income generating activities to eligible minorities. The loans are extended to individuals or Self-Help Groups through State Channelizing Agencies (SCAs) nominated by the concerned State Governments/UT administrations.

(xiii) Maulana Azad National Academy for Skills (MANAS): MANAS has been established on 11/11/2014, as Special Purpose Vehicle (SPV) for addressing all skill development needs of minority communities, to ensure provision of sustainable livelihoods to them, with emphasis on self-employment. Based on market demand, the Academy provides an All India level training framework for Entrepreneurship and Skill Development Programme (E&SDP) based on PPP model, for imparting training to minority population, with concessional credit linkages.

(xiv) Jiyo Parsi: "For containing the population decline of the Parsi community, a Central Sector Scheme 'Jiyo Parsi' was launched during 2013-14. The objective of this scheme is to reverse the declining trend of Parsi population by adopting a scientific protocol and structured interventions to stabilize their population and balance their population in India.

(xv) Nai Manzil: An integrated education and livelihood initiative for the minority communities scheme has been launched on 08.08.2015 on pilot basis for formal education of school dropouts and Madarsa students to enhance their education and skills in various trade to enable them for gainful employment.

This information was given by Shri Mukhtar Abbas Naqvi, the Minister of State for Minority Affairs in response to a written question in Rajya Sabha today.

3. Forest rights of Forest dwelling Scheduled Tribes and other tradional forest dwellers.—(*1*) For the purposes of this Act, the following rights, which secure individual or community tenure or both, shall be the forest rights of forest dwelling Scheduled Tribes and other traditional forest dwellers on all forest lands, namely:–

(*a*) right to hold and live in the forest land under the individual or common occupation for habitation or for self-cultivation for livelihood by a member or members of a forest dwelling Scheduled Tribe or other traditional forest dwellers;

(*b*) community rights such as nistar, by whatever name called, including those used in erstwhile Princely States, Zamindari or such intermediary regimes;

(*c*) right of ownership, access to collect, use, and dispose of minor forest produce which has been traditionally collected within or outside village boundaries;

(*d*) other community rights of uses or entitlements such as fish and other products of water bodies, grazing (both settled or transhumant) and traditional seasonal resource access of nomadic or pastoralist communities;

(*e*) rights including community tenures of habitat and habitation for primitive tribal groups and pre-agricultural communities;

(*f*) rights in or over disputed lands under any nomenclature in any State where claims are disputed;

(*g*) rights for conversion of *Pattas* or leases or grants issued by any local authority or any State Government on forest lands to titles;

(*h*) rights of settlement and conversion of all forest villages, old habitation, unsurveyed villages and other villages in forests, whether recorded, notified or not into revenue villages;

(*i*) right to protect, regenerate or conserve or manage any community forest resource which they have been traditionally protecting and conserving for sustainable use;

(*j*) rights which are recognised under any State law or laws of any Autonomous District Council or Autonomous Regional Council or which are accepted as rights of tribals under any traditional or customary law of the concerned tribes of any State;

(*k*) right of access to biodiversity and community right to intellectual property and traditional knowledge related to biodiversity and cultural diversity;

(*l*) any other traditional right customarily enjoyed by the forest dwelling Scheduled Tribes or other traditional forest dwellers, as the case may be, which are not mentioned in clauses (*a*) to (*k*) but excluding the traditional right of hunting or trapping or extracting a part of the body of any species of wild animal;

(*m*) right to *in situ* rehabilitation including alternative land in cases where the Scheduled Tribes and other traditional forest dwellers have been illegally evicted or displaced from forest land of any description without receiving their legal entitlement to rehabilitation prior to the 13th day of December, 2005.

(2) Notwithstanding anything contained in the Forest (Conservation) Act, 1980 (69 of 1980), the Central Government shall provide for diversion of forest land for the following facilities managed by the Government which involve felling of trees not exceeding seventy-five trees per hectare, nemely:–

(*a*) schools;

(*b*) dispensary or hospital;

(*c*) *anganwadis*;

(*d*) fair price shops;

(*e*) electric and telecommunication lines;

(*f*) tanks and other minor water bodies;

(*g*) drinking water supply and water pipelines;

(*h*) water or rain water harvesting structures;

(*i*) minor irrigation canals;

(*j*) non-conventional source of energy;

(*k*) skill upgradation or vocational training centres;

(*l*) roads; and

(*m*) community centres;

Provided that such diversion of forest land shall be allowed only if,–

(*i*) the forest land to be diverted for the purposes mentioned in this sub-section is less than one hectare in each case; and

(*ii*) the clearance of such developmental projects shall be subject to the condition that the same is recommended by the Gram Sabha.

CHAPTER III

RECOGNITION, RESTORATION AND VESTING OF FOREST RIGHTS AND RELATED MATTERS

4. Recognition of, and vesting of, forest rights in forest dwelling Scheduled Tribes and other traditional forest dwellers.–(*1*) Notwithstanding anything contained in any other law for the time being in force, and subject to the provisions of this Act, the Central Government hereby recognises and vests forest rights in–

(*a*) the forest dwelling Scheduled Tribes in States or areas in States where they are declared as Scheduled Tribes in respect of all forest rights mentioned in section 3;

(*b*) the other traditional forest dwellers in respect of all forest rights mentioned in section 3.

(2) The forest rights recognised under this Act in critical wildlife habitats of National Parks and Sanctuaries may subsequently be modified or resettled, provided that no forest rights holders shall be resettled or have their rights in any manner affected for the purposes of creating inviolate areas for wildlife conservation except in case all the following conditions are satisfied, namely:–

(*a*) the process of recognition and vesting of rights as specified in section 6 is complete in all the areas under consideration;

(*b*) it has been established by the concerned agencies of the State Government, in exercise of their powers under the Wild Life (Protection) Act, 1972 (53 of 1972) that the activities or impact of the presence of holders of rights upon wild animals is sufficient to cause irreversible damage and threaten the existence of said species and their habitat;

(*c*) the State Government has concluded that other reasonable options, such as, co-existence are not available;

(*d*) a resettlement or alternatives package has been prepared and communicated that provides a secure livelihood for the affected individuals and communities and fulfils the requirements of such affected individuals and communities given in the relevant laws and the policy of the Central Government;

(*e*) the free informed consent of the Gram Sabhas in the areas concerned to the proposed resettlement and to the package has been obtained in writing;

(*f*) no resettlement shall take place until facilities and land allocation at the resettlement location are complete as per the promised package:

Provided that the critical wildlife habitats from which rights holders are thus relocated for purposes of wildlife conservation shall not be subsequently diverted by the State Government or the Central Government or any other entity for other uses.

(*3*) The recognition and vesting of forest rights under this Act to the forest dwelling Scheduled Tribes and to other traditional forest dwellers in relation to any State or Union territory in respect of forest land and their habitat shall be subject to the condition that such Scheduled Tribes or tribal communities or other traditional forest dwellers had occupied forest land before the 13th day of December, 2005.

(*4*) A right conferred by sub-section (*1*) shall be heritable but not alienable or transferable and shall be registered jointly in the name of both the spouses in case of married persons and in the name of the single head in the case of a household headed by a single person and in the absence of a direct heir, the heritable right shall pass on to the next-of-kin.

(*5*) Save as otherwise provided, no member of a forest dwelling Scheduled Tribe or other traditional forest dweller shall be evicted or removed from forest land under his occupation till the recognition and verification procedure is complete.

(*6*) Where the forest rights recognised and vested by sub-section (*1*) are in respect of land mentioned in clause (*a*) of sub-section (*1*) of section 3 such land shall be under the occupation of an individual or family or community on the date of commencement of this Act and shall be restricted to the area under actual occupation and shall in no case exceed an area of four hectares.

(*7*) The forest rights shall be conferred free of all encumbrances and procedural requirements, including clearance under the Forest (Conservation) Act, 1980 (69 of 1980), requirement of paying the 'net present value' and 'compensatory afforestation' for diversion of forest land, except those specified in this Act.

(*8*) The forest rights recognised and vested under this Act shall include the right of land to forest dwelling Scheduled Tribes and other traditional forest dwellers who can establish that they were displaced from their dwelling and cultivation without land compensation due to State development interventions, and where the land has not been used for the purpose for which it was acquired within five years of the said acquisition.

5. Duties of holders of forest rights.–The holders of any forest right, Gram Sabha and village level institutions in areas where there are holders of any forest right under this Act are empowered to–

(*a*) protect the wild life, forest and biodiversity;

(*b*) ensure that adjoining catchments area, water sources and other ecological sensitive areas are adequately protected;

(*c*) ensure that the habitat of forest dwelling Scheduled Tribes and other traditional forest dwellers is preserved from any form of destructive practices affecting their cultural and natural heritage;

(*d*) ensure that the decisions taken in the Gram Sabha to regulate access to community forest resources and stop any activity which adversely affects the wild animals, forest and the biodiversity are complied with.